Reporter Engagement Agreement

Draft for review by a qualified advocate before use. Items in [square brackets] are to be filled in.

This Reporter Engagement Agreement ("Agreement") is made on [date] at [city] between:

1. [Registered legal name], operating as "Chowk News", a [company / LLP / partnership / proprietorship] with its registered office at [address] (registration no. [CIN / LLPIN / GSTIN]) ("**Chowk**"); and

2. [Reporter's full name], aged 18 years or above, son/daughter/spouse of [name], residing at [address], holding [ID type] ending [last 4 digits], mobile [number], email [email] ("**Reporter**").

Chowk and the Reporter are each a "Party" and together the "Parties".

Background

A. Chowk runs a local-language news app and website (the "Platform"), beginning in Uttar Pradesh.

B. Chowk wishes to engage the Reporter to gather and submit news content from the Assigned Area, and the Reporter agrees to do so on these terms.

C. The Parties agree that the truth, accuracy and lawfulness of news are the foundation of this engagement.

1. Definitions

- **"Assigned Area"**: the State, Zone, District and Division recorded in Schedule A or on the Platform.
- **"Content"**: any report, text, headline suggestion, photograph, audio, video, graphic, data, location tag or other material submitted by the Reporter, in any form.
- **"Reporter Code"**: the unique identification code issued by Chowk to the Reporter.
- **"AI Tools"**: any artificial-intelligence tool used by the Reporter or by Chowk, including Chowk's AI moderation and editing tools.
- **"Claim"**: any complaint, notice, demand, suit, FIR, regulatory action or other proceeding by any person arising from Content.
- **"Losses"**: all damages, awards, fines, settlements, costs, legal and professional fees (on an actual-cost basis), and the costs of takedown, correction and apology, together with any reasonable loss directly caused.

- **“Applicable Law”**: all Indian laws, as amended from time to time, including the Bharatiya Nyaya Sanhita, 2023; Information Technology Act, 2000; Copyright Act, 1957; Digital Personal Data Protection Act, 2023; Protection of Children from Sexual Offences Act, 2012; Juvenile Justice Act, 2015; Representation of the People Act, 1951; Contempt of Courts Act, 1971; Official Secrets Act, 1923; the Press Council Act, 1978 and its norms of journalistic conduct; and all orders of courts and regulators.

2. Nature of engagement

2.1 The Reporter is engaged as an **independent contractor**, not as an employee, partner or agent of Chowk. The Reporter is not entitled to salary, provident fund, gratuity, leave or other employee benefits. The Reporter decides how and when to carry out assignments, subject to Chowk’s editorial standards.

2.2 The Reporter has no authority to bind Chowk, make statements on its behalf, enter contracts for it, or describe himself or herself as its employee.

2.3 The Reporter is assigned to the Assigned Area. Chowk may assign other reporters to the same area. The Reporter Code and any identity card remain Chowk’s property, are to be used only for Chowk assignments, and must be returned or deactivated on request.

2.4 The Reporter bears his or her own equipment, travel, communication, tax and personal-safety costs unless Chowk approves an expense in writing in advance.

3. Reporting standards

3.1 The Reporter shall report only what he or she has personally seen or heard, or has verified through reliable sources.

3.2 Before submitting any report that names or identifies a person or organisation in connection with a crime, misconduct, corruption, dispute or allegation, the Reporter must: (a) seek the version of the affected person or organisation and record the attempt; (b) rely on a documented source such as an FIR, police or official statement, court record or document; and (c) attribute every allegation clearly to its source.

3.3 Facts must be kept separate from opinion, and opinion must be clearly marked.

3.4 On request, the Reporter shall confidentially disclose his or her sources to Chowk’s editorial team. For serious allegations, the Reporter shall not rely solely on an anonymous source without prior editor approval.

3.5 The Reporter shall not accept money, gifts or favours for coverage, shall not present sponsored or promotional material as news, and shall disclose any personal, family or financial interest in a subject before submitting.

3.6 **AI Tools.** The Reporter may use AI Tools only for translation, spelling or grammar. The Reporter shall not use AI Tools to generate facts, quotes, images, audio or video, or any material depicting events that did not happen, and shall not submit manipulated or synthetic media. Any AI-assisted material must be disclosed to Chowk at submission.

3.7 Photographs, audio and video must be genuine, taken by the Reporter or used with permission, and not edited in a way that changes their meaning. Metadata, timestamps and location data must not be altered or falsified.

3.8 The Reporter shall obtain consents required by law before recording or publishing identifiable persons and shall follow Schedule B and Chowk's editorial guidelines as updated from time to time.

4. Prohibited content

The Reporter shall not submit Content that:

(a) is false, fabricated, misleading or recklessly unverified;

(b) is defamatory of any person, organisation or community;

(c) promotes enmity or hatred between religions, castes, communities, languages or regions, or incites violence or disorder;

(d) discloses the identity of a child in conflict with law, a child victim, or a victim of a sexual offence;

(e) is in contempt of court or prejudices a pending case;

(f) violates election law or the Model Code of Conduct, including campaigning disguised as news;

(g) is obscene, or glorifies suicide or violence, or shows graphic gore contrary to Chowk's guidelines;

(h) infringes copyright, trademark, privacy or any other right, or is plagiarised;

(i) discloses information protected by law or held in confidence;

(j) publishes personal data without a lawful basis;

(k) is paid, sponsored or promotional but presented as news; or

(l) is otherwise unlawful or against public order or decency.

5. Reporter's warranties

For each item of Content, the Reporter represents, warrants and undertakes that:

(a) it is the Reporter's original work;

(b) it is true and accurate to the best of the Reporter's knowledge after the verification required by Section 3, and no fact has been fabricated, exaggerated or distorted;

(c) it is lawful and does not breach Section 4;

(d) the Reporter owns or has the right to all material in it and has obtained every consent and permission needed;

(e) it has not been published or offered elsewhere; and

(f) all information the Reporter has given about his or her identity, location and credentials is accurate.

6. Records and evidence

6.1 The Reporter shall keep raw notes, original audio, video and photo files, messages with sources and supporting documents for [24] months after each submission.

6.2 The Reporter shall produce these records within [48] hours of Chowk's request and shall cooperate in any verification.

6.3 The Reporter consents to Chowk relying on Platform logs, including submission times, device data and location data, as evidence.

7. Submission and editorial control

7.1 The Reporter shall submit Content only through the Platform. Content is reviewed through Chowk's workflow, which may include human and AI-assisted moderators and editors.

7.2 Chowk has sole editorial discretion to edit, translate, reject, hold, schedule, publish, correct, re-headline or unpublish any Content. Chowk is not obliged to publish anything.

7.3 Review, approval or editing by Chowk, including by AI Tools, is a quality-control step only. It does not reduce the Reporter's responsibility for the truth and lawfulness of the facts and material the Reporter supplied, and it is not a representation by Chowk that the Content is accurate.

7.4 The Reporter is not responsible to the extent that a Claim arises solely from headlines, captions, additions, deletions or combinations introduced by Chowk without the Reporter's input ("Chowk Changes").

7.5 The Reporter shall tell Chowk immediately if he or she learns that any submitted Content is wrong, doubtful or disputed.

8. Intellectual property

8.1 In consideration of the fees in Schedule A, the Reporter assigns to Chowk absolutely and irrevocably all copyright and other rights in the Content, for the full term of copyright, throughout the world and in all media and formats now known or later developed, including the rights to reproduce, publish, translate, adapt, communicate to the public, license and sublicense. The Parties expressly agree that these rights shall not lapse for non-exercise under section 19(4) of the Copyright Act, 1957.

8.2 To the extent permitted by law, the Reporter waives any right to object to modifications made consistent with Section 7. Chowk will credit the Reporter by name or Reporter Code unless safety or editorial reasons require otherwise.

8.3 The Reporter grants Chowk a licence to use his or her name, image, voice and Reporter Code on the Platform and in promotion during the term and for archived Content afterwards.

8.4 The Reporter may show published pieces in a personal portfolio with credit to Chowk.

8.5 The Reporter shall not include third-party material without written permission and shall tell Chowk about any such material.

9. Fees and payment

9.1 Chowk shall pay the fees in Schedule A for Content that Chowk accepts or publishes, within [30] days of the end of each [month / invoice].

9.2 Chowk shall deduct tax at source where required. The Reporter is responsible for his or her own taxes and any GST registration.

9.3 No fee is payable for rejected, unpublished or withdrawn Content unless Schedule A says so.

9.4 Chowk may withhold, and set off against amounts due to the Reporter, a reasonable estimate of Losses arising from a Claim relating to the Reporter's Content, pending its resolution. Chowk may also recover fees paid for Content later found to be false, fabricated or unlawful.

10. Confidentiality and data protection

10.1 The Reporter shall keep confidential unpublished stories, internal processes, credentials, editorial discussions, business information and the identity of sources.

10.2 Chowk shall protect the identity of a confidential source disclosed to it, except where disclosure is required by law, a court or a competent authority.

10.3 The Reporter shall handle personal data only as needed for assignments, in line with the Digital Personal Data Protection Act, 2023 and Chowk's privacy policy, and shall report any data breach to Chowk immediately.

10.4 The Reporter consents to Chowk processing his or her personal data, including identity, location during assignments, device and activity logs and payment details, for administration, verification, payment and legal compliance.

11. Responsibility and indemnity

11.1 As between the Parties, the Reporter is solely responsible for the truth, accuracy and lawfulness of the Content and for compliance with Sections 3 to 5.

11.2 The Reporter shall indemnify, and if Chowk requires defend, Chowk and its owners, partners, directors, editors, officers and employees (the "Indemnified Persons") against all Losses arising out of or in connection with: (a) any Claim relating to Content supplied by the Reporter that is false, fabricated, misleading, defamatory or otherwise unlawful, or that breaches Section 4 or 5; (b) the Reporter's breach of this Agreement or Applicable Law; (c) infringement of third-party rights by the Content; and (d) the Reporter's negligence, misconduct or unlawful acts during assignments.

11.3 The indemnity does not cover Losses to the extent caused by Chowk Changes or by Chowk's own wilful misconduct.

11.4 Chowk shall notify the Reporter of a Claim. Chowk controls the defence and chooses counsel, and may settle where it reasonably considers settlement prudent after consulting the Reporter. The Reporter shall cooperate and shall not settle, or communicate with the claimant about the Claim, without Chowk's prior written consent.

11.5 The Reporter shall reimburse legal and other costs as they are incurred, within [15] days of Chowk's invoice with reasonable proof.

11.6 Nothing in this Agreement makes Chowk responsible for the Reporter's own civil or criminal liability. The Reporter acknowledges that he or she may be separately liable to claimants and authorities. Nothing in this Agreement stops Chowk from cooperating with authorities or giving them the Reporter's identity and records.

11.7 [Optional: The Reporter's total liability under this Section is limited to ₹[amount], except for fabrication, fraud or wilful misconduct, for which it is unlimited.]

12. Chowk's rights and remedies

12.1 Chowk may remove, disable, edit or label any Content at any time without notice.

12.2 Chowk may publish corrections, clarifications, apologies or a right of reply as it decides or as the law requires. The Reporter shall cooperate, and where the correction results from the Reporter's breach, the Reporter shall bear Chowk's actual costs.

12.3 Chowk may suspend the Reporter Code immediately on suspicion of breach, pending inquiry.

12.4 Chowk may report matters to, and share evidence with, law-enforcement agencies, regulators and courts where required by law or to protect its rights.

12.5 These remedies are in addition to all other rights, including injunctive relief.

13. Complaints and legal notices

The Reporter shall tell Chowk within **24 hours** of receiving any complaint, notice, threat, summons or approach about any Content, shall forward a copy, shall preserve all evidence, and shall not delete anything. The Reporter shall give statements and affidavits and attend hearings as Chowk reasonably requests, including after this Agreement ends.

14. Safety and conduct

The Reporter shall not trespass, obstruct public servants, impersonate officials, bribe, hack, or record secretly where the law forbids it. The Reporter may decline any assignment he or she considers unsafe. Chowk does not provide insurance unless Schedule A says so.

15. Exclusivity per story and conflicts

15.1 Content submitted to Chowk is exclusive to Chowk until the earliest of publication, rejection, or [72] hours without a decision.

15.2 The Reporter shall not share unpublished Content with anyone else.

15.3 The Reporter is free to work for others after this Agreement ends, subject to Sections 8 and 10.

16. Term and termination

16.1 This Agreement starts on the date above and continues for [12] months, renewing automatically for like periods unless a Party gives notice.

16.2 Either Party may terminate for convenience on [15] days' written notice. A message through the Platform counts as written notice.

16.3 Chowk may terminate immediately for false or fabricated Content, breach of Sections 3 to 5, 10, 13 or 14, misuse of the Reporter Code, or a legal order.

16.4 On termination the Reporter Code is deactivated, confidential material is returned or deleted, and Chowk pays undisputed fees for accepted Content, subject to Section 9.4.

16.5 Sections 6, 8, 9.4, 10, 11, 12, 13 and 17 to 20 survive termination.

17. Limitation of Chowk's liability

Chowk is not liable for indirect or consequential loss. Chowk's total liability to the Reporter is limited to fees paid or payable in the preceding [3] months, except for unpaid fees due and where the law does not allow limitation.

18. Electronic execution and records

This Agreement may be signed physically, by e-signature (including Aadhaar eSign) or by in-app acceptance. Platform records, including submissions, timestamps, approvals and messages, are admissible and, absent manifest error, are accurate evidence. Chowk may give notice through the Platform, email, SMS or WhatsApp to the Reporter's registered details.

19. Governing law and disputes

19.1 This Agreement is governed by Indian law.

19.2 The Parties shall first try to settle any dispute amicably within 30 days of written notice.

19.3 Unresolved disputes shall be referred to arbitration under the Arbitration and Conciliation Act, 1996 before a sole arbitrator appointed by mutual consent or, failing that, by [the High Court / an arbitral institution]. The seat and venue are [Lucknow] and the language is [English / Hindi]. The award is final and binding.

19.4 Courts at [Lucknow] have exclusive jurisdiction for interim relief and enforcement, and Chowk may seek injunctive relief, including takedown and preservation of evidence, at any time.

20. General

20.1 This Agreement is the entire agreement between the Parties on its subject. It may be amended only in writing or by the Reporter's in-app acceptance after notice. Updates to Schedule B and the editorial guidelines take effect on notice but shall not reduce agreed

fees.

20.2 If any provision is unenforceable, the rest remains in force. No waiver is effective unless in writing.

20.3 Chowk may assign this Agreement to a successor or affiliate. The Reporter may not assign or subcontract.

20.4 Neither Party is liable for delay caused by events beyond its reasonable control.

20.5 This Agreement is made in English and Hindi. [English / Hindi] prevails if they differ.

20.6 The Reporter confirms that he or she has read this Agreement, has had it explained in a language he or she understands, and has had the chance to take independent legal advice.

20.7 This Agreement shall be stamped as required under the applicable Stamp Act. Stamp costs are borne by [Chowk].

Schedule A – Reporter and engagement details

Item	Details
Reporter Code	[ ]
Assigned Area	State [Uttar Pradesh] · Zone [ ] · District [ ] · Division [ ]
Beat / categories	[ ]
Fees	[₹ per accepted story / monthly retainer ₹]
Payment cycle	[ ]
Payment details	Held securely on the Platform, not written here
Term and notice	[12 months] · [15 days]
Record retention	[24 months]
Optional liability cap (Section 11.7)	[None / ₹]
Insurance provided by Chowk	[None / details]

Schedule B – Verification checklist (every report)

1. Did I see or hear this myself, or verify it with a reliable source?
2. Is every allegation tied to a document or named source?

3. Did I seek and record the other side's version?
4. Are names, dates, places and numbers checked?
5. Are photos, audio and video genuine, unedited, and taken at the stated place and time?
6. Have I avoided identifying minors and victims of sexual offences?
7. Have I kept opinion out of the facts and disclosed any conflict of interest and any AI use?
8. Have I saved my raw notes and original files?

Schedule C – Reporter's declaration

I declare that I have read and understood this Agreement, that I will report only what I have verified, and that I accept responsibility for the Content I submit.

Signatures

For Chowk News

Name: [ ] Designation: [ ] Signature: [ ] Date: [ ]

Reporter

Name: [ ] Signature: [ ] Date: [ ]

Witness 1

Name: [ ] Address: [ ] Signature: [ ]

Witness 2

Name: [ ] Address: [ ] Signature: [ ]